

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 24, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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101	Clicktide Digital Corporation vs. VPP Technologies, Inc., 25-01521849	Specially Appearing Defendant VPP Technologies, LLC ("VPP") moves to quash service of summons on the basis Clickside Digital Corporation ("Plaintiff") has not demonstrated this Court has personal jurisdiction over VPP. Pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1), a Defendant may, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, serve and file a notice of motion to quash service of summons, on the

		ground of lack of jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.” (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 449 (<i>Vons</i>).) “The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate.” (<i>Strasner v. Touchstone Wireless Repair and Logistics, LP</i> (2016) 5 Cal.App.5th 215, 222; <i>See also BBA Aviation PLC v. Superior Court</i> (2010) 190 Cal.App.4th 421, 428-429.) The Plaintiff must establish jurisdiction “by a preponderance of the evidence.” (<i>Shisler v. Sanfer Sports Cars, Inc.</i> (2006) 146 Cal.App.4th 1254, 1259.) With respect to general jurisdiction, “only a limited set of affiliations with a forum render a defendant amenable to all-purpose jurisdiction there.” (<i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 137.) “For general jurisdiction, the ‘paradigm forum’ is an ‘individual’s domicile,’ or, for corporations, ‘an equivalent place, one in which the corporation is fairly regarded as at home.’” (<i>Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County</i> (2017) 137 S.Ct. 1773, 1776.) The “paradigm” bases for general jurisdiction for a corporation are the place of incorporation and the principal place of business. (<i>Daimler AG v. Bauman</i> (2014) 571 U.S. 117, 138.) Here, it is undisputed that VPP is an Illinois limited liability company, and Plaintiff does not otherwise contend that VPP is subject to general jurisdiction. (See Treacy Decl. ¶¶7-8; Lyons Decl. ¶ 1.) “If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction he or she still may be subject to the specific jurisdiction of the forum, if the defendant has purposefully availed himself or herself of forum benefits...and the controversy is related to or arises out of a defendant’s contacts with the forum.” (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) “The United States Supreme Court has described the forum contacts necessary to establish specific jurisdiction
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as involving variously a nonresident who has ‘purposefully directed’ his or her activities at forum residents...or who has ‘purposefully derived benefit’ from the forum activities...or ‘purposefully avail[ed himself or herself] of the privilege of conducting activities within the forum State, thus invoking the benefits and protections of its laws.” (*Id.* at p. 446.)

Stated more simply, “[a] court may exercise specific jurisdiction over a nonresident defendant only if: (1) the defendant has purposefully availed himself or herself of forum benefits; (2) the controversy is related to or arises out of the defendant’s contacts with the forum; and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice.” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1314.)

As explained by the Court in *Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, “[t]he purposeful availment inquiry...focuses on the defendant’s intentionality. [Citation] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on’ his contacts with the forum.” (*Id.* at p. 1317.) “[T]he ‘purposeful availment’ requirement ensures that a defendant will not be hauled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations], or of the ‘unilateral activity of another party or a third person.” (*Ibid.*).

This action concerns a business dispute between the parties. The parties had a meeting at a conference in Las Vegas wherein they discussed working together. The agreement that was discussed in Las Vegas was ultimately sent to Plaintiff’s principal, Greg Graveline, via email, and he signed it in Orange County, California, which is where his business is located. (ROA 42, Graveline Decl. ¶¶1, 4.)

The Agreement provides that it will be governed and construed “in accordance with United States law, and otherwise, in accordance with Illinois law.” (ROA 22, Lyons Decl., Exh. 1, ¶ 12.)

The parties disagree as to who initiated the Las Vegas meeting. Plaintiff contends that one of the principals of VPP reached out to Graveline via LinkedIn to initiate the meeting, whereas VPP contends that Graveline responded to a general announcement on VPP's LinkedIn profile which indicated that VPP would be attending the conference. (ROA 42, Graveline Decl. ¶ 4; ROA 56, Lyons Decl. ¶ 8.) VPP contends that the meeting with Graveline was one of approximately 37 meetings that VPP scheduled during the conference. (ROA 56, Lyons Decl. ¶ 9.)

Irrespective of who initiated the Las Vegas meeting, it does not appear that Plaintiff being located in California had any role in causing VPP to enter the agreement with Plaintiff. As explained by one of VPP's principals, Michael Lyons:

"VPP enters into contracts with companies, and thereafter those companies enter into contracts to obtain traffic from other third-party sources. The physical location of VPP's direct contracting party therefore does not necessarily correspond to the location from which the traffic originates.

"Based upon VPP's traffic data, less than one percent (1%) of the traffic to VPP's websites originates from California. California was not a targeted or material market underlying VPP's relationship with Clicktide."

(ROA 56, Lyons Decl., ¶¶ 15-16.)

Plaintiff further urges that VPP also does business with Yahoo!, that Yahoo! monitored the activity and calculated the revenue attributable to Plaintiff's work, and that Yahoo! is registered to do business in California. This connection to California is far too attenuated to be considered purposeful availment.

Although Graveline executed the Agreement in Orange County California, it was emailed to him by VPP and could have been reviewed and executed anywhere. (ROA 42, Graveline Decl. ¶ 4; ROA 56, Lyons Decl. ¶¶ 10-11.)

Further, Plaintiff does not dispute that its website does not identify any address, state or geographic location for the company, and does not reference California in any

		manner. (ROA 56, Lyons Decl. ¶ 14.) VPP's principals have never visited Plaintiff's California office. (Id. ¶ 20.) VPP's dealings with Plaintiff did not require anyone from VPP to travel to California and California's location was immaterial to the performance of the parties' agreement. (Id. ¶ 21.) Accordingly, the motion is GRANTED. Plaintiff's objection to the Declaration of Nick Szabo on the grounds that it does not comply with CCP §2015.5, as it was executed outside of California and does not state that it was made under penalty of jury under the laws of the State of California is OVERRULED as the declaration has been amended to indicate compliance with section 2015.5. Plaintiff's request for judicial notice is DENIED as immaterial to the resolution of this motion. <i>Moving Party to give notice.</i>
102	Smartstop Storage Advisors, LLC vs. Hernandez, 25-01528578	Defendant Prime Group Holdings, LLC ("Prime") moves for an order requiring plaintiff SmartStop Storage Advisors, LLC ("SmartStop") to file an undertaking in the amount of \$500,000 pursuant to Code of Civil Procedure section 1030. Code of Civil Procedure section 1030 provides, in relevant part: "(a) When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney's fees which may be awarded in the action or special proceeding. For the purposes of this section, "attorney's fees" means reasonable attorney's fees a party may be authorized to recover by a statute apart from this section or by contract. "(b) The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding. The motion shall be accompanied by an affidavit in support of the grounds for the motion and by a